

THE CITY OF CHEYENNE, WYOMING
PURCHASE AND SALE AGREEMENT

PREAMBLE

THIS PURCHASE AND SALE AGREEMENT (the "Agreement") is made and entered into this ____ day of _____, 2018, by and between (1) Linda M. Moran, 5412 Independence Drive, Cheyenne Wyoming 82001; (2) Gail L. Anderson, 840 Centennial Drive, Cheyenne, Wyoming 82001; and (3) Vici Rae Foster, 1204 W. Pershing, Cheyenne, Wyoming 82001, ("Sellers"), and the City of Cheyenne, Wyoming a municipality organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming, 82001 (the "Purchaser"), sometimes individually referred to herein as "Party" and collectively as "Parties."

RECITALS

WHEREAS, the Purchaser wishes to secure, for public transportation purposes, the real property depicted at Exhibit A, attached hereto and incorporated herein, together with the Sellers' rights, privileges, interests and appurtenances related to said real property, including, but not limited to, all right, title and interest in and to adjacent streets, alleys, and rights of way, all of which is hereinafter referred to as the "Real Property;" and

WHEREAS, the Sellers are the owners of the Real Property located in the general vicinity of the southwest intersection of the Christensen Road right-of-way and the Union Pacific Railroad right-of-way near the City of Cheyenne, Laramie County, Wyoming, such Real Property consisting of approximately 12,481 square feet, or 0.29 acres of land more or less, as more particularly depicted in Exhibit A; and

WHEREAS, the Sellers are willing to sell to the Purchaser, and the Purchaser is willing to purchase from Sellers the Real Property upon the terms and conditions hereinafter stated; and

NOW, THEREFORE, for good and valuable consideration, the receipt of which is hereby acknowledged, the Parties hereto agree as follows:

AGREEMENT

1. Purchase and Sale. Sellers agree to sell to the Purchaser and the Purchaser agrees to purchase from Sellers:

1.1. The Real Property, as depicted and described in Exhibit A, attached hereto, and legally described as:

A parcel being a portion of the SE1/4SE1/4 of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, situate South of the southerly right-of-way line for the Union Pacific Railroad, further described as follows:

Beginning at the Southeast Corner of said Section 25, thence N89°49'07"W a distance of 220.08 feet on and along the southerly line of said Section 25 to the point of intersection with the said southerly right-of-way of the Union Pacific Railroad;

Thence on and along said southerly right-of-way on a curve to the right having a delta angle of 2°33'14", a radius of 5,529.65 feet, a length of 246.48 feet, and a long chord bearing N63°18'52"E, a distance of 246.46 feet to a point on the easterly line of said Section 25;

Thence S0°03'58"W, a distance of 111.38 feet on and along said easterly line of Section 25 to the point of beginning.

Said parcel containing 12,481.9 square feet, or 0.29 acres, more or less.

1.2. All licenses, permits, and franchises issued by any governmental authority to or in favor of Sellers and pertaining to the ownership, development or use of the Real Property, if any; and

1.3. All contract rights and general intangible rights pertaining to the ownership, development or use of the Real Property, if any; and

1.4. All improvements, structures and fixtures situated on the Real Property which will be conveyed in an "as is" condition without any representations or warranties relating to their physical condition and without ascribing any value to them; and

1.5. All fixtures, equipment and other personal property of every kind and nature now installed, located, situated or used in, on, or about, or in connection with the operation, use, or enjoyment of the Real Property; and

1.6. All: (i) contracts or agreements affecting or relating to the Real Property, but only to the extent the Purchaser elects to take an assignment thereof; (ii) licenses, permits or similar documents; (iii) plans, drawings, specifications, surveys, engineering reports, and other technical reports or descriptions of the Real Property, to the extent Sellers have any in their possession; and (iv) insurance contracts or policies which pertain to the Real Property, but only to the extent the Purchaser elects to take an assignment thereof.

1.7. Prior to closing, the Sellers shall pay, when due and payable, all real property taxes and assessments asserted against the Real Property for the current year and for all prior years. All such taxes and assessments for the current year will be apportioned between the Parties on a pro rata basis as of the date of closing.

2. Purchase Price.

2.1. The purchase price to be paid by the Purchaser to Sellers for the Real Property, and all of the Sellers' interest in said Real Property as described in Section 1 of this Agreement, is **Thirteen Thousand and no/100 Dollars (\$13,000.00)**, (the "Purchase Price"), subject to proration and adjustments, if any, as provided herein. The Purchase Price represents the total amount to be paid by the Purchaser to all three Sellers, such that each Seller shall receive one-third of the total Purchase Price. Each individual Seller agrees to receive a one-third (1/3) interest in the Purchase Price and to hold Purchaser harmless if any Seller later discovers their interest at the time of this purchase and sale of the Real Property to be greater than a one-third (1/3) interest.

2.2. The Purchase Price shall be paid to Sellers or, with written authorization, to Sellers' designee, in full at the time of Closing, subject to pro-rations and adjustments, if any, provided that the Purchaser's duty to pay the Purchase Price at Closing is subject to the requirement that Sellers cooperate with the Purchaser in reporting the Purchase Price and the other terms and conditions of this Agreement to the Internal Revenue Service, as required by law.

2.3 Prior to the date of Closing, Sellers shall secure the release and discharge of all mortgages, liens, assessments, leases, rental agreements, advertising sign leases, if any, and other claims which encumber the Real Property. The Purchaser shall have the right to cancel this Agreement in the event Sellers are unable or otherwise fail, neglect, or refuse to convey good and marketable title to the Purchaser in accordance with the terms and conditions of this Agreement.

3. Title.

3.1. Prior to Closing, the Purchaser shall have the right to obtain a Title Commitment for the Real Property (the "Title Commitment") at the Purchaser's sole cost and expense. In the event the Title Commitment shows that the Sellers are not vested with good, marketable, and insurable fee simple title to the Real Property, or that the Real Property is subject to liens, encumbrances, taxes or assessments which will not be discharged prior to Closing, the Purchaser shall have the right, in its sole and absolute discretion, to declare this Agreement null and void pursuant to Section 3.2 of this Agreement. Alternatively, the Purchaser may accept the Real Property subject to such matters as set forth on Exhibit B attached to this Agreement (collectively, the "Permitted Exceptions.") The condition of title as described in this Section 3.1 shall be the standard of marketable title that Sellers shall deliver at the Closing. If Sellers deliver such title and except for the Permitted Exceptions as set forth in Exhibit B, such title will be satisfactory and acceptable to the Purchaser under Sections 3.4 and 7.2 herein.

3.2 Prior to Closing, the Purchaser shall have the right to obtain a survey (the "Survey") of the Real Property, which Survey shall be prepared at the Purchaser's sole cost and expense. Sellers grant to the Purchaser, and its employees and agents, access to the Real Property sufficient for the preparation of the Survey, including without limitation: (i) the actual dimensions of, and area within, the Real Property, (ii) the location of any easements, setback lines, encroachments, or overlaps thereon and the outside boundary lines of all improvements; (iii) all easements, setback lines, and other matters referred to on the Title Commitment; (iv) access to and from the Real Property from any publicly dedicated streets or roads; and (v) any areas within the Real Property that have been designated by any federal state or other governmental agency or body as being subject to special, or increased flooding hazards. The Survey shall be prepared and certified by a

surveyor licensed in the State of Wyoming and, if required by the Purchaser, shall be sufficient to allow issuance of an ALTA Extended Coverage Title Policy. The Surveyor shall prepare a metes and bounds or other legal description of the Real Property from information shown on the Survey and this description shall be used in the documents executed at Closing.

3.3. Within five (5) days following the execution of this Agreement and unless obtained independently by the Purchaser, Sellers shall deliver to the Purchaser the following:

(a) True, complete and legible copies of all documents referred to in the Title Commitment to the extent that any such document **has not been filed** for record in the office of the Laramie County Clerk and ex-officio register of deeds;

(b) True, complete and legible copies of all documents that are known to Sellers, that are not referred to in the Title Commitment and that may affect the marketability of title to the Real Property;

(c) Any soils, geological, and engineering studies in the possession, custody, or control of Sellers that are relevant to the Real Property;

(d) Copies of any entitlements or permits relating to the development of the Property;

(e) True and complete copies or originals of any lease or occupancy agreements for any portion of the Property;

(f) Copies of environmental studies pertaining to the Real Property in the possession of Sellers, if any;

(g) Any notices of violations of law received by Sellers during the period of time that Sellers have owned the Real Property;

(h) **All mortgages**, notes and loan documents for any mortgage which encumbers the Real Property on the date hereof, which mortgages, notes, and loan documents shall be discharged by the Sellers prior to closing;

(i) Copies of any and all materials relating to pending or present litigation involving the Real Property.

3.4. The Purchaser shall have thirty (30) calendar days from the date of receipt of the Title Commitment referred to in Section 3.1 or thirty (30) calendar days following receipt of documents to be provided by the Sellers pursuant to Section 3.3, whichever period is longer, in which to examine the same. If the Purchaser finds title to the Real Property to be other than as described in Section 3.1, hereof, the Purchaser shall, no later than the expiration of said period of thirty (30) calendar days, notify Sellers in writing specifying the defect or defects. The Purchaser may raise as additional objections, however, any defect first shown by any title update between the date of the Title Commitment and the Closing Date by giving Sellers written notice of any such defect within five (5) business days after the Purchaser first has notice of same. If the Purchaser has

given Sellers timely written notice of defects that render the title other than as required by Sections 3.1 and 3.3 of this Agreement (“Defects”), Sellers shall use their best efforts to cause such Defects to be cured within ten (10) days following receipt of such notice. In the event the Sellers fail to eliminate such Defects, the Purchaser shall have the right to terminate this Agreement pursuant to Section 3.5. In the event the Sellers create any liens or encumbrances on the Real Property which are capable of being satisfied by the payment of money at the Closing, Sellers shall be obligated to use the Purchase Price to cure the Defects.

3.5. The date for elimination of the Defects may be extended until Closing. In the event that Sellers do not eliminate any Defect prior to or at the Closing, as the same may be extended under the preceding provision, the Purchaser shall have the option of either: (i) closing and accepting the title “as is,” without reduction in the Purchase Price and without claim against Sellers therefore, or (ii) cancelling this Agreement. In the event of a Defect that was not caused by Sellers’ action or caused by Sellers’ failure to act, Sellers’ only responsibility shall be to assign to the Purchaser Sellers’ Title Insurance Policy or Sellers’ rights under Sellers’ Title Insurance Policy, whichever is applicable, and cooperate with the Purchaser in obtaining the assistance of Sellers’ title insurer to remove the Defect.

3.6. Sellers shall not create any new exceptions to title, and shall use their best efforts to prevent any other person or entity from creating new exceptions to title to the Real Property prior to Closing.

4. Inspection Period.

4.1. The Purchaser shall have until thirty (30) days following the date of execution of this Agreement (the “Inspection Period”) to make such physical, zoning, marketing and other investigations, tests and studies, including but not limited to soil tests and borings, Phase I environmental surveys, utility availability surveys, and confirmation of subdivision map requirements and restrictions as the Purchaser may deem appropriate (“The Purchaser’s Inspections”). The Purchaser’s Inspections shall be at the Purchaser’s sole cost and expense. The Purchaser shall repair any damage to the Real Property caused by the Purchaser’s Inspections, reasonable wear and tear excepted. The Purchaser shall hold Sellers harmless from any loss, cost or expense arising during or as a result of the Purchaser’s Inspections.

4.2. The Purchaser, at its option, may conduct, at its sole cost, such independent investigation and inspection of the Property as the Purchaser shall deem reasonably necessary to ascertain the “environmental” condition of the Property (“the Purchaser’s Environmental Investigation”). The Purchaser assumes no responsibility or liability as a result of any inaccuracies arising in or from the Purchaser’s Environmental Investigation, and makes no representations or warranties whatsoever regarding (i) the completeness of the Purchaser’s Environmental Investigation, or (ii) the truth or accuracy of the Purchaser’s Environmental Investigation. If Sellers conducts any environmental testing of the Real Property subsequent to the date of this Agreement, Sellers shall provide the Purchaser with a copy of any report promptly after its receipt of same. Sellers shall have no obligation to remedy any environmental problem on the Real Property.

5. Termination.

5.1. In the event the Purchaser, in the Purchaser's sole and absolute discretion, determines that the development and construction of public transportation improvements on the Real Property is not feasible or that any aspect of the Purchaser's Inspections or Environmental Investigation is not satisfactory, either during or subsequent to the Inspection Period, the Purchaser shall have the right, at any time prior to the Closing, to terminate this Agreement by giving Sellers written notice thereof (the "Termination Notice"), in which event, both Parties shall be released from all further obligations under this Agreement.

6. Conditions Precedent.

6.1. The Purchaser's obligation to close this transaction shall be subject to fulfillment of the following conditions precedent:

(a) Sellers shall, at Sellers' sole cost and expense, obtain releases, at or prior to Closing, for any and all liens or encumbrances affecting the Real Property caused by Sellers' action or caused by Sellers' failure to act as of the date of Closing, pursuant to the terms of this Agreement.

(b) Sellers shall not be in default in its obligations under this Agreement.

(c) The Escrow Agent, at the expense of the Purchaser, shall be prepared to deliver a Title Insurance Policy in a form acceptable to the Purchaser (the "Title Policy") insuring the Purchaser's title to the Real Property in accordance with the terms of this Agreement,

6.2. In the event any of the foregoing conditions precedent are not fulfilled as of Closing (or earlier date where specified otherwise), then the Purchaser shall have the option of either: (i) waiving the condition and closing "as is" without reduction in the Purchase Price or claim against Sellers therefore provided, that Sellers assign to the Purchaser all of Sellers' right, title and interest to the title insurance policy it obtained when it acquired the Property, or (ii) cancelling this Agreement by written notice to Sellers.

7. Sellers' Representations and Warranties.

7.1. Sellers hereby represent and warrant to the Purchaser that the following are true statements as of the date of this Agreement and shall be true as of the date of Closing, and Sellers agree to deliver a certificate confirming that the following representations and warranties are true as of the date of the Closing.

(a) Sellers are individuals and have full power and authority to sell and convey the Real Property and to execute this Agreement and such other documents described herein to be executed by Sellers.

(b) Sellers now have and will have at Closing good, marketable and indefeasible title in fee simple to the Real Property subject to the Permitted Exceptions and no Party, except as

herein set forth, has or shall have any right in, or to acquire, the Property.

(c) At Closing, the Real Property shall be free and clear of all encumbrances except the Permitted Exceptions as set forth in Section 3.1 of this Agreement.

(d) At Closing, the Real Property shall be free from any and all actions, suits, claims, assessments or proceedings pending or, to the knowledge of Sellers, threatened that could materially adversely affect the ownership, operation, or maintenance of the Real Property or Sellers' ability to perform hereunder.

(e) To the best of Sellers' knowledge, the Property and Sellers are not currently in violation of or subject to: (i) any existing, pending or threatened investigation or inquiry by any governmental authority; or (ii) any remedial obligations under any Applicable Laws pertaining to health or the environment (hereinafter sometimes collectively called "Applicable Environmental Laws"), including without limitation the Comprehensive Environmental Response, Compensation, and Liability Act of 1980, as amended ("CERCLA") and the Resource Conservation and Recovery Act of 1976, as amended ("RCRA"). Sellers shall have no obligation to remove or take any action to cure or remediate any environmentally hazardous material from the Real Property if any environmentally hazardous material is found on the Real Property.

(f) Sellers do not have knowledge of any hazardous substances or solid wastes that have been disposed of or otherwise released on the Real Property. The terms "hazardous substance" and "release" shall have the meanings specified in CERCLA, and the terms "solid waste" and "disposal" or "disposed" shall have the meanings specified in RCRA; provided, to the extent that the laws of the State of Wyoming establish a meaning for "hazardous substance," "release," "solid waste," or "disposal" that is broader than that specified in either CERCLA or RCRA, such broader meaning shall apply.

(g) There are no parties in possession of any portion of the Real Property, whether as lessees, tenants at sufferance, trespassers or otherwise.

7.2. Sellers shall not intentionally cause any of the representations and warranties contained herein to become materially incorrect, nor authorize any action which would do so. If subsequent to the execution of this Agreement and on or before Closing, Sellers nonetheless have knowledge that any of the representations and warranties set forth herein have become incorrect in any respect (a "Discrepancy"), Sellers shall promptly notify the Purchaser, in writing, of the occurrence of such event. The Purchaser shall have a right to approve or disapprove any such Discrepancy, which approval or disapproval shall be given by written notice delivered to Sellers no fewer than ten (10) days prior to the Closing for the Purchaser to evaluate the effect of such Discrepancy. If such written notice is delivered to Sellers within less than ten (10) days of a scheduled Closing date, such Closing date shall be extended such that the Closing date shall be no fewer than ten (10) days after the written notice of approval or disapproval is delivered by Purchaser to Sellers. If the Purchaser waives such Discrepancy, and elects to acquire the Real Property, Sellers' representations and warranties contained herein shall be deemed to have been made as of the Closing, subject to the waived Discrepancy. If the Purchaser disapproves of the Discrepancy, and

Sellers fail to cure same, then upon written notice thereof to Sellers, this Agreement shall be terminated and all rights and obligations of the Parties hereunder shall terminate.

7.3. Except for the representations of Sellers set forth in Section 7.1, that shall survive for one (1) year from the Closing, the express representations and warranties made in this Agreement shall merge into any instrument or conveyance delivered at Closing and shall not survive Closing.

8. Risk of Loss.

8.1. The Property shall be conveyed to the Purchaser in substantially and materially the same condition as on the date this Agreement is executed by the Purchaser, ordinary wear and tear excepted, free of all tenancies or occupancies.

9. Default Provisions.

9.1. In the event of the wrongful failure or refusal of the Purchaser to close this transaction after sixty (60) days written notice, Sellers shall be entitled to those remedies as may be provided by law.

9.2. In the event of Sellers' failure to close in accordance with the terms and provisions of this Agreement for sixty (60) days after written notice, the Purchaser, at its option and as the Purchaser's sole and exclusive remedy for default of Sellers, shall have the right either to terminate this Agreement or seek specific performance of the Sellers' obligations hereunder.

10. Prorations.

10.1. All proratable items, if any, shall be prorated as of the date of Closing.

11. Closing Costs and Expenses.

11.1 At Closing, The Purchaser shall pay the cost of the Title Insurance Policy to be issued to the Purchaser and the cost of the Survey, and all recording fees necessary to record instruments received by the Purchaser at closing. Each Party shall pay its own attorney's fees, if any. Sellers shall pay the recording costs with respect to documents necessary to clear title at Closing and all instruments received by Sellers at closing.

12. Closing.

12.1. The closing of this transaction shall be held on the first business day occurring thirty (30) days after the satisfaction of all of the conditions of Closing (the "Closing Date") or earlier upon agreement of the Parties. First American Title, Cheyenne, Wyoming, shall prepare the closing documents.

12.2. At Closing, Sellers shall deliver:

(a) a warranty deed duly executed and acknowledged in proper form for recording

conveying to the Purchaser good and indefeasible fee simple title in and to the Real Property, subject only to the Permitted Exceptions;

(b) an assignment of all rights appurtenant to the Real Property, if any, as provided in Section 1, above;

(c) a title affidavit and a mechanic's lien affidavit;

(d) an affidavit of exclusive possession;

(e) an affidavit pursuant to Internal Revenue Code Section 1445(b)(2) with respect to Sellers' status as non-foreign persons;

(f) a certificate, or other document as acceptable to the Purchaser, confirming Sellers' authority to sell the Real Property;

(g) such other documents as are usually required to insure the Purchaser's title.

12.3. At Closing, the Purchaser, at the Purchaser's expense, shall receive an Owner's Title Insurance Policy ("Owner's Title Policy"), in a form acceptable to the Purchaser, issued by First American Title Insurance Company in the full amount of the Purchase Price, insuring the Purchaser's indefeasible fee simple title to the Real Property, subject only to the Permitted Exceptions and the printed exceptions contained in the standard form of the Owner's Title Insurance Policy.

13. *Brokers.*

13.1 The Parties each represent and warrant to the other that no Party to this transaction shall be responsible for the payment of any compensation or commission due any real estate agent, broker, salesman or finder unless that Party has engaged the real estate agent, broker, salesman, or finder in writing. If a claim for compensation or commission in connection with this transaction is made by any agent, broker, salesman or finder claiming to have dealt through or on behalf of one of the Parties hereto, such Party shall indemnify, defend and hold harmless the other Parties hereunder from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) with respect to said claim for compensation or commission. Anything to the contrary notwithstanding, the provisions of this paragraph shall survive the Closing and any cancellation or termination of this Agreement.

14. *Assignability.*

14.1 Neither Party shall have the right to assign this Agreement without the express written consent of the other Party.

15. *Access.*

15.1 The Purchaser, and the Purchaser's agents and contractors, shall have the right during the term of this Agreement to enter upon the Real Property, and adjacent areas as provided in this Agreement, at any time for purposes of making investigations, tests and studies provided that the Purchaser shall indemnify, defend, and hold harmless Sellers from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) for bodily injury, death, or physical damage to the Real Property caused by any such investigation test or study. The foregoing indemnification shall survive the Closing and any cancellation or termination of this Agreement.

16. *Notices.*

16.1 Any notices required or permitted to be given under this Agreement shall be delivered by hand or mailed by certified or registered mail, return receipt requested, or overnight delivery service in a postage prepaid envelope, and addressed as follows:

If to the Purchaser:	City of Cheyenne 2101 O'Neil Avenue Cheyenne, WY 82001 ATTN: City Engineer
With copy to:	City Attorney
If to the Sellers at:	Linda M. Moran 5412 Independence Drive Cheyenne, WY 82001 Gail L. Anderson 840 Centennial Drive Cheyenne, WY 82001 Vici Rae Foster 1204 W. Pershing Cheyenne, WY 82001

17. *Operation of the Property.*

17.1. During the period between the date hereof and the Closing, Sellers shall:

- (a) Keep the Real Property in substantially the same repair and condition as of the date hereof, but excluding damages to the Property caused by The Purchaser's Inspection or The Purchaser's use of the Property;
- (b) Comply with all state and municipal laws, ordinances, regulations, and orders relating to the Real Property;
- (c) Comply with all the terms, conditions, and provisions of all liens, mortgages, agreements, insurance policies, and other contractual arrangements relating to the Real

Property, make all payments due thereunder, and suffer no default therein;

(d) Without written approval of the Purchaser, neither negotiate nor enter into any new contract or modify any existing contract affecting the use or operation of the Real Property which cannot be terminated without charge, cost, penalty, or premium on or before the Closing;

(e) Operate, manage, and maintain the Real Property in the usual and customary manner for similar property;

(f) Promptly notify The Purchaser in writing if any material change occurs in the occupancy or conditions affecting the Real Property; and

(g) Provide the Purchaser and its representatives, employees, and agents full and complete access during normal business hours, to the Real Property, and adjacent areas as provided in this Agreement.

18. *Miscellaneous.*

18.1. This Agreement shall be construed and governed in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the Parties, the Purchaser reserves all defenses and immunities under the Wyoming Governmental Claims Act, W.S. 1-39-101 *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. All legal proceedings shall occur in a court of competent jurisdiction sitting in Laramie County, Wyoming.

18.2. In the event any term or provision of this Agreement be determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be given its nearest legal meaning or be construed as deleted as such authority determines, and the remainder of this Agreement shall be construed to be in full force and effect.

18.3. In construing this Agreement, the singular shall be held to include the plural, the plural shall be held to include the singular, the use of any gender shall be held to include every other and all genders, and captions and paragraph headings shall be disregarded.

18.4. All of the exhibits attached to this Agreement are incorporated in, and made a part of, this Agreement.

18.5. This Agreement constitutes the entire understanding and agreement between the Parties, and there are no understandings, agreements, representations or warranties except as specifically set forth herein.

18.6. This Agreement may not be changed, altered or modified except by an instrument in writing signed by the Party against whom enforcement of such change would be sought.

18.7. This Agreement shall be binding upon the Parties hereto and their respective

successors and assigns.

18.8. The failure of any Party at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. No waiver by any Party of any condition, or of any breach of any covenant, agreement, representation or warranty contained in this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such condition or breach or waiver of any other condition or of any breach of any other covenant, agreement, representation or warranty.

18.9. If the final date of any period provided for herein for the performance of an obligation or for the taking of any action falls on a Saturday, Sunday or banking holiday, then the time of that period shall be deemed extended to the next day which is not a Sunday, Saturday or banking holiday. All time periods expiring on a specific date or period herein shall be deemed to expire at 5:00 p.m. Mountain Standard or Mountain Daylight Time, as applicable.

18.10. This Agreement may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed an original, but such counterparts together shall constitute but one agreement.

18.11. During the term of this Agreement, Sellers shall not list the Real Property for sale, rent or exchange or otherwise offer the Real Property for sale, rent or exchange. Sellers shall have the right to disclose this Agreement to any lending institution.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date first above written.

CITY OF CHEYENNE

(SEAL)

Attest:

By: _____

Marian J. Orr, Mayor

By: _____

Carol Intlekofer, City Clerk

Date: _____

LINDA M. MORAN

By: _____

Date: _____

GAIL L. ANDERSON

By: _____

Date: _____

VICI RAE FOSTER

By: _____

Date: _____

EXHIBIT A

Depiction of Real Property

Attached to the Purchase Agreement between

*Mses. Linda M. Moran, Gail L. Anderson, and Vici Rae Foster, as Sellers,
and the City of Cheyenne, Wyoming, as Purchaser*

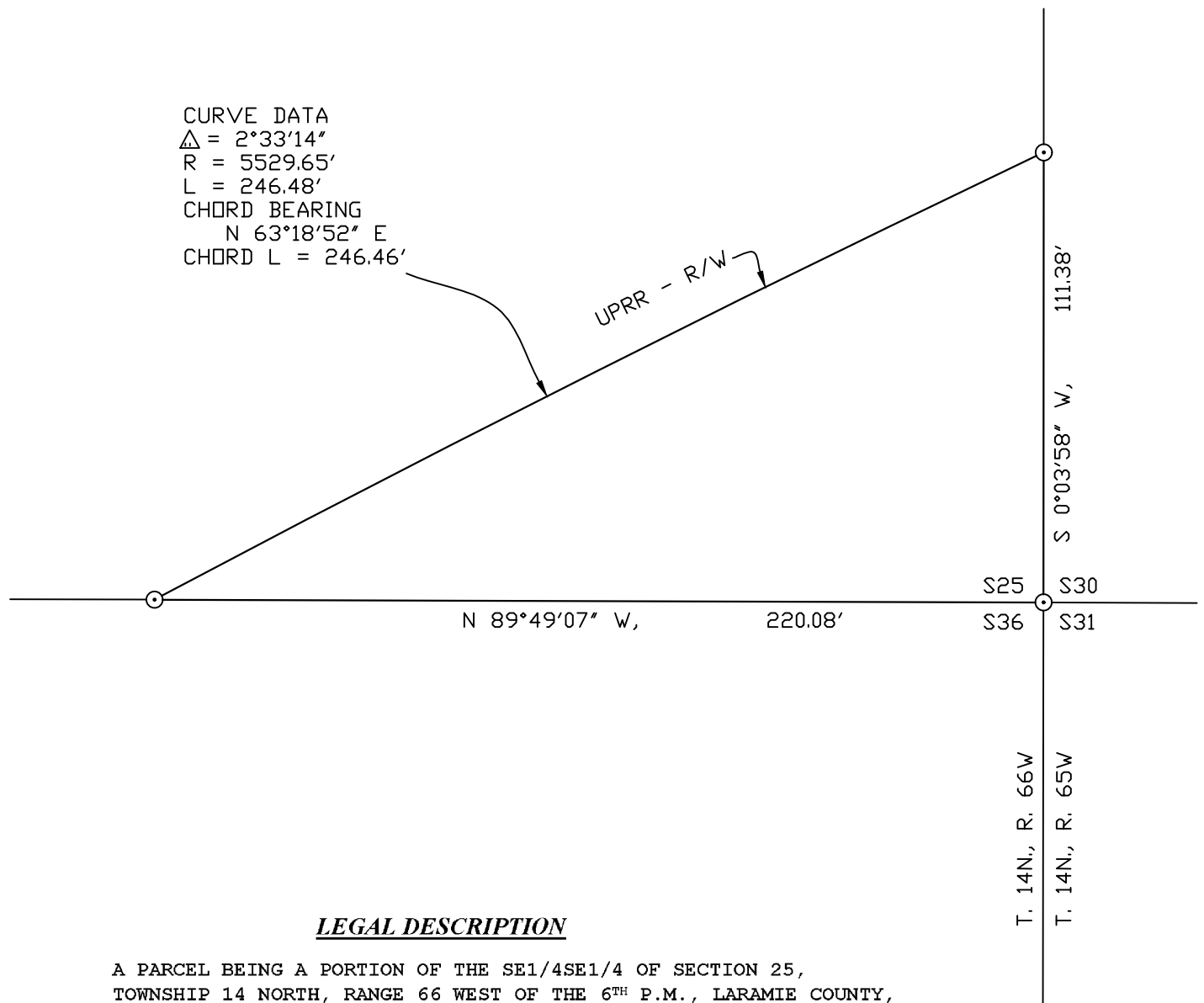
12,481 Square Feet
Between UPRR and Christensen Road
Cheyenne, WY





SCALE
1"=40'

EXHIBIT "A"



LEGAL DESCRIPTION

A PARCEL BEING A PORTION OF THE SE1/4SE1/4 OF SECTION 25, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, SITUATE SOUTH OF THE SOUTHERLY RIGHT OF WAY LINE FOR THE UNION PACIFIC RAILROAD, FURTHER DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF SAID SECTION 25, THENCE N $89^{\circ}49'07''$ W A DISTANCE OF 220.08 FEET ON AND ALONG THE SOUTHERLY LINE OF SAID SECTION 25 TO THE POINT OF INTERSECTION WITH THE SAID SOUTHERLY RIGHT OF WAY OF THE UNION PACIFIC RAILROAD;

THENCE ON AND ALONG SAID SOUTHERLY RIGHT OF WAY ON A CURVE TO THE RIGHT HAVING A DELTA ANGLE OF $2^{\circ}33'14''$, A RADIUS OF 5,529.65 FEET, A LENGTH OF 246.48 FEET, AND A LONG CHORD BEARING N $63^{\circ}18'52''$ E, A DISTANCE OF 246.46 FEET TO A POINT ON THE EASTERLY LINE OF SAID SECTION 25;

THENCE S $0^{\circ}03'58''$ W, A DISTANCE OF 111.38 FEET ON AND ALONG SAID EASTERLY LINE OF SECTION 25 TO THE POINT OF BEGINNING

SAID PARCEL CONTAINING 12,481.9 SQUARE FEET OR 0.29 ACRE MORE OR LESS.



DRAWN BY: MG
DATE: 3-30-18

EXHIBIT B

Permitted Exceptions

*Attached to the Purchase Agreement between
Mses. Linda M. Moran, Gail L. Anderson, and Vici Rae Foster, as Sellers,
and the City of Cheyenne, Wyoming, as Purchaser*

SCHEDULE B - II

EXCEPTIONS FROM COVERAGE

Any policy we issue will have the following exceptions unless they are taken care of to our satisfaction.

1. Any facts, rights, interests, or claims that are not shown in the Public Records but that could be ascertained by an inspection of the Land or by making inquiry of the persons in possession of the Land.
2. Easements, claims of easements or encumbrances that are not shown in the Public Records.
3. Any encroachment, encumbrance, violation, variation, or adverse circumstance affecting the Title including discrepancies, conflicts in boundary lines, shortage in area, or any other facts that would be disclosed by an accurate and complete land survey of the Land, and that are not shown in the Public Records.
4. Any lien, or right to a lien, for services, labor or material theretofore or hereafter furnished, imposed by law and not shown in the Public Records.
5. (a) Unpatented mining claims; (b) Reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) Water rights, claims or title to water, whether or not the matters excepted under (a), (b) or (c) are shown by the Public Records.
6. Any right, title or interest including any claim thereto, to minerals, including but not limited to ores, metals, coal, lignite, oil, gas, uranium, clay, rock, sand, gravel or other common variety materials, whether or not shown by the public records.
7. The lien of real estate taxes or assessments imposed on the Title by a governmental authority that are not shown as existing liens in the records of the County Treasurer or in the Public Records.

Taxes for the year 2018.

8. Easement, including terms and conditions contained therein:
Granted to: American Telephone and Telegraph Company
For: communication system
Recorded: June 10, 1941
Recording Information: [Book 366, Page 204](#)
Assigned: The Mountain States Telephone and Telegraph Company, a
Colorado Corporation
Recorded: January 16, 1976
Recording Information: [Book 1053, Page 366](#)
9. Easement, including terms and conditions contained therein:
Granted to: Rural Electric Company
For: electric line or system
Recorded: December 8, 1950
Recording Information: [Book 494, Page 52](#)